



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 1094/12

BEFORE: T. Mitchinson: Vice-Chair

HEARING: May 31, 2012 at Toronto
Oral

DATE OF DECISION: June 28, 2012

NEUTRAL CITATION: 2012 ONWSIAT 1496

APPLICATION FOR ORDER REMOVING THE RIGHT TO SUE

APPEARANCES:

For the applicant: L. Castellucci, Lawyer

For the respondent: A. G. McConnell, Lawyer

Interpreter: N/A

REASONS

(i) Introduction

[1] This is an application under section 31 of the *Workplace Safety and Insurance Act* by two of the defendants (Ontario Corporation Number 2039292 Ontario Limited operating as Rathburn Price Chopper; and Ontario Corporation Number 2074140) in an action filed in the Ontario Superior Court of Justice as Court File No. CV-09-373872, for a declaration and order to bar the plaintiffs/respondents from commencing and maintaining a civil action against the two defendants/applicants for damages stemming from injuries sustained at the premises of the two defendants/applicants on March 17, 2007.

[2] The application was heard in Toronto on May 31, 2012. The applicants were represented at the hearing by Lora Castellucci, a lawyer. Alan G. McDonnell, also a lawyer, attended on behalf of the respondents. One witness, W, testified on behalf of the applicants, and two of the plaintiffs, Ms. C. Pallotta (CP) and Ms. L. Pallotta (LP), as well as one witness, M, testified on behalf of the respondents. Ms. Castellucci and Mr. McDonnell made submissions on behalf of their clients.

[3] At the beginning of the hearing I accepted three new records as exhibits in the application. They are:

- A typed version of CP's March 23, 2007 statement which appears in handwritten form as part of the respondent's section 31 statement.
- A 15-page report from treating rheumatologist, Dr. Potashner, dated January 1, 2008.
- A 2-page excerpt from a personal diary created by CP.

[4] Later in the hearing I marked another exhibit, a 5-page excerpt from the transcript of CP's examination for discovery in the civil action that was not included in either party's section 31 statement.

(ii) The issue

[5] The only issue is whether section 31 of the *Workplace Safety and Insurance Act* (the *Act*) applies so as to take away the respondents' right to commence an action for damages in the Ontario Superior Court of Justice.

(iii) Statutory provisions and Board policy

[6] Section 31(1) of the *Act* reads as follows:

A party to an action or an insurer from whom statutory accident benefits are claimed under section 268 of the *Insurance Act* may apply to the Appeals Tribunal to determine,

- (a) whether, because of this *Act*, the right to commence an action is taken away;
- (b) whether the amount that a person may be liable to pay in an action is limited by this *Act*; or
- (c) whether the plaintiff is entitled to claim benefits under the insurance plan.

- [7] Board *Operational Policy Manual (OPM)* Document No. 15-01-05 sets out the policy and guidelines for determining whether the requirements of section 31(1) of the *Act* are present:

POLICY

The Act provides no fault loss of earnings benefits for injuries arising out of and in the course of employment in lieu of all rights of action that a worker or survivor may have against the worker's employer. In most cases any right of action is taken away by the Act. However, there are circumstances where a worker or survivor may have a right of action against a third party.

GUIDELINES

When all parties involved in the accident were in the course of their employment, the worker has no right of action against any Schedule 1

- employer
- director
- executive officer, or
- worker.

- [8] OPM Document No. 15-02-02 outlines the policy and guidelines for determining whether an accident occurred in the course of employment:

POLICY

A personal injury by accident occurs in the course of employment if the surrounding circumstances relating to **place, time** and **activity** indicate that the accident was work-related.

GUIDELINES

In determining whether a personal injury by accident occurred in the course of employment, the decision-maker applies the criteria of **place, time** and **activity** in the following way:

Place

If a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment. A personal injury by accident occurring off those premises generally will not have occurred in the course of employment.

If a worker with a fixed workplace was injured while absent from the workplace on behalf of the employer or if a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.

Time

If a worker has fixed working hours, a personal injury by accident generally will have occurred in the course of employment if it occurred during those hours or during a reasonable period before starting or after finishing work.

If a worker does not have fixed working hours or if the accident occurred outside the worker's fixed working hours, the criteria of place and activity are applied to determine whether the personal injury by accident occurred in the course of employment.

Activity

If a personal injury by accident occurred while the worker was engaged in the performance of a work-related duty or in an activity reasonably incidental to (related to) the employment, the personal injury by accident generally will have occurred in the course of employment.

If a worker was engaged in an activity to satisfy a personal need, the worker may have been engaged in an activity that was incidental to the employment. Similarly, engaging in a brief interlude of personal activity does not always mean that the worker was not in the course of employment. In determining whether a personal activity occurred in the course of employment, the decision-maker should consider factors such as

- the duration of the activity
- the nature of the activity, and
- the extent to which it deviated from the worker's regular employment activities.

In determining whether an activity was incidental to the employment, the decision-maker should take into consideration

- the nature of the work
- the nature of the work environment, and
- the customs and practices of the particular workplace.

Application of criteria

The importance of the three criteria varies depending on the circumstances of each case. In most cases, the decision-maker focuses primarily on the activity of the worker at the time the personal injury by accident occurred to determine whether it occurred in the course of employment.

If a worker with fixed working hours and a fixed workplace suffered a personal injury by accident at the workplace during working hours, the personal injury by accident generally will have occurred in the course of employment unless, at the time of the accident, the worker was engaged in a personal activity that was not incidental to the worker's employment.

The decision-maker examines the activity of the worker at the time of the accident to determine whether the worker's activity was of such a personal nature that it should not be considered work-related.

In all other circumstances, the time and place of the accident are less important. In these cases, the decision-maker focuses on the activity of the worker and examines all the surrounding circumstances to decide if the worker was in the course of employment at the time that the personal injury by accident occurred.

[9] OPM Document No. 15-03-08 sets out the policy for determining whether a worker has removed him/herself from employment:

Policy

An accident shall be considered to occur in the course of the employment when it happens on the employer's premises as defined, unless at the time of the happening of the accident the worker is performing an act not incidental to the work or employment obligations.

Guidelines

Compensation benefits are not payable to a worker who is voluntarily out of the course of the employment. Such situations may include

- doing something outside the worker's normal duties, such as transacting personal business, or
- going places having nothing to do with the worker's employment or doing something not reasonably expected of the worker.

(iv) Background

[10] CP was employed by the applicants (herein referred to as Rathburn Price Chopper - RPC) on March 17, 2007 on a part-time basis as a deli clerk. She also held a full-time job with a different grocery store as a deli/bakery manager.

[11] CP was not working a scheduled work shift at RPC on March 17, 2007. However, she came to the RPC store location after finishing her full-time shift with the other grocery store. While at RPC, CP used the washroom and after leaving the washroom she slipped on spilled milk and fell to the floor, suffering physical and related injuries.

[12] CP commenced an action against the applicants and other named companies by Statement of Claim issued by the Ontario Superior Court of Justice on March 6, 2009. The respondent's spouse and LP also brought claims pursuant to the provisions of the *Family Law Act*.

[13] RPC then brought an application to the Tribunal pursuant to section 31(1) of the *Act*, claiming that CP was a worker in the course of her employment at the time she sustained her injuries and that CP is barred from proceeding with her Superior Court action.

(v) W's testimony

[14] W testified on behalf of RPC.

[15] At the time of the incident in March 2007, W had worked for RPC for 14 years and held the position of Assistant Store Manager. He was not CP's supervisor, but knew her well and they had a good relationship as colleagues. W described CP as a good, conscientious employee.

[16] W testified that he was not involved in the operation of the deli department where CP worked, nor was he involved in the scheduling of deli department staff. W explained that scheduling details were left up to individual department managers. In his department it was up to individual employees to find someone to replace them on a scheduled shift, and all scheduling changes had to be approved by him, either in person or over the phone. However, W testified that he was not aware of what policies were followed by the deli manager.

[17] W testified that he was working the afternoon shift on March 17, 2007. While at work he got a call from CP's daughter, LP, telling him that CP had fallen while at the RPC store and that she was taking CP to the hospital. According to W, after receiving the call he went to the location within the store where the fall purportedly occurred, but he did not witness the incident, nor did he see CP that day either before or after the fall. W testified that he told LP to come into the RPC store the following day to fill out an accident report.

[18] W also testified that there were two washrooms at the RPC store, one for men and the other for women. They were both located in the "back room", and were used primarily by employees. According to W, he did not encourage customers to use the washrooms, and any customer, who wanted to, had to get an employee's approval and the employee would have to accompany the customer to and from the washroom.

(vi) CP's testimony

- [19] CP testified that her part-time job with RPC as a deli clerk usually involved working a 4:00 to 9:00 pm shift, after completing her full-time job with the other grocery store.
- [20] CP recalled that she worked her regular 7:00 am to 3:00 pm shift at the other store on March 17, 2007, after which she and her daughter, LP, went to do some grocery shopping at the RPC store on the way home. She also intended to speak to one of the other deli department staff while she was there to see about changing a shift for the following week. CP explained that she went to RPC to do the shopping, rather than the other grocery store, because prices were cheaper.
- [21] CP testified that LP stayed in the parked car while she went into the RPC store. Before leaving the car, LP reminded CP to change her shift. She went to the deli department after entering store and managed to make the shift change with another employee. CP explained that the policy for shift changes in the deli department did not require the manager's approval; it was simply something that was worked out between department employees. According to CP, the shift change arrangements could be done either in person or over the phone, and she had the other employees' phone numbers. However, she decided to make the change in person on March 17 because she was going to the store anyway to buy groceries.
- [22] After arranging the shift change, CP testified that she went to use the washroom. According to CP, although the washroom was located behind the public areas of the store, it was used by both employees and customers. The deli department had regular customers who, according to CP, were able to use the washroom unaccompanied.
- [23] CP testified that she exited the washroom and spoke to one of the cashiers who was in the "back room", turned the corner to enter the main part of the store, and slipped on spilled milk, falling to the floor. She was helped to her feet by a customer.
- [24] CP went on to testify that she had not done any grocery shopping before the fall, but she recalled picking up a pineapple that was on sale, and paying for it before returning to her car. By that point the pain from her fall had intensified, so she went home to change from her wet clothes and then proceeded to the hospital emergency department.
- [25] Mr. McDonnell referred CP to the transcript of her examination for discovery in the civil suit where she stated that she went to the RPC store on March 17, 2007 to change her work shift but did not mention any intention to do grocery shopping. CP testified that she went to the store for both purposes on that date and must have forgotten to mention grocery shopping at the examination for discovery because she was very nervous at that time.
- [26] CP went on to explain that she began to keep a personal diary on March 27, 2007 to describe her thoughts following the incident. However, she did not think it was relevant evidence for the purpose of the Tribunal proceeding, and for that reason she did not provide it to Mr. McDonnell. According to CP, she came across the diary while cleaning up at her home a short time before the hearing and reread the earlier entries where she described both purposes for going to the RPC store on March 17.
- [27] On cross-questioning by Ms. Castellucci, CP testified that she did not review any documentation before her examination for discovery, although she was not prevented from doing so. She acknowledged that she did not reference an intention to go shopping during the examination, and again explained this omission by her state of nervousness during that proceeding. She also confirmed that she did not do any actual grocery shopping before the fall.

[28] CP testified that she did not recall being examined by rheumatologist, Dr. Potashner, in January 2008 or seeing his January 31, 2008 report that was tabled as an exhibit at the hearing. After reviewing the report, CP acknowledged that it makes no mention of an intention to shop at the RPC store on March 17, 2007. Ms. Castellucci presented CP with a copy of pages of her examination for discovery that make mention of Dr. Potashner's report, but CP continued to maintain that she has no recollection of seeing the doctor or reviewing the report.

(vii) LP's testimony

[29] LP testified that in 2007 she was a college student who worked part-time at the deli department of the store where CP worker on a full-time basis. Earlier in 2006 she had worked as a deli clerk at the RPC store.

[30] LP testified that she was working along with her mother on March 17, 2007, which was a Saturday, and they left the store together after completing their shifts at 3:00 pm. LP recalled that they decided after leaving work to stop at the RPC store on the way home to buy some groceries that they knew were on sale. LP recalled that CP made specific mention of pineapples and some other dairy products.

[31] According to LP, her mother drove the car and LP stayed in it after it was parked in the RPC store lot. LP testified that she reminded CP to arrange for a shift change before she left the car to go into the RPC store. She recalled that the shift schedule had come out a few days earlier, and she and CP both knew that CP's shift for the following Monday had to be changed to accommodate a family function.

[32] LP recalled from her time working at the RPC store that the washrooms were in the "back room", but that they could be used by customers without being accompanied.

[33] LP testified that CP returned to the car holding a pineapple and walked over to the passenger side of the car crying due to pain. She recalled that they went home where CP changed from her wet clothes and they both went to the local hospital emergency department.

[34] On cross-questioning by Ms. Castellucci, LP stated that she did not ask CP about other groceries when she returned to the car, but that CP told her she had picked up the pineapple after the falling incident.

(viii) M's testimony

[35] M testified that he was the produce department manager at the RPC store in March 2007. He did not witness CP's falling incident, but he recalled speaking to her after she got up and before she left the store. He recalled that CP told him what had happened and appeared to be in a state of shock. She told him she wanted to buy a pineapple.

[36] According to M, the store washrooms were available to both employees and customers. However, he also testified that care was taken for customer use as the washrooms were located in a non-public part of the store.

[37] As far a shift change policies were concerned, M testified that each department had its own policy, and in the produce department he required employees to contact him first before making a change. If he agreed, then the employee would make alternative arrangements. M was not aware what policy was followed in the deli department.

[38] On cross-questioning by Ms. Castellucci, M testified that he was not aware that CP was coming to the store to change her shift on March 17, but he remembered the specific circumstances of that day because it was the last time he saw CP at work.

(ix) Ms. Castellucci's submissions

[39] Ms. Castellucci submits that this case turns on the question of whether the activity engaged in by CP at the time of the fall was incidental to her employment with RPC. In her view, it was, based on the various factors outlined in OPM Document Nos. 15-03-08 and 15-02-02.

[40] To begin, Ms. Castellucci raised concerns regarding CP's credibility that she asks me to consider. Specifically, she questions why the 2-page diary excerpt was not produced earlier in this proceeding or in the context of the civil claim. She also queries why, if CP had a clear intention to shop while at the RPC store, there was no mention of this as an intended purpose in either CP's examination for discovery or her consultation with Dr. Potashner. Ms. Castellucci also points to an apparent inconsistency between the level of injury that would cause CP to return to her car crying while at the same time stopping to buy an individual pineapple before leaving the store.

[41] As far as the "place", "time" and "activity" criteria of OPM Document No. 15-02-02 are concerned, Ms. Castellucci submits that they have all been satisfied on the facts. CP was at her place of employment during regular business hours, and her primary purpose for going there was to change her work shift. It was important that CP change the shift for her upcoming family event on Monday, and it made sense that she chose to come into the store late in the day on the prior Saturday to do so, rather than relying on finding a replacement by phone.

[42] Ms. Castellucci relies on the transcript from CP's for discovery, as well as the report from Dr. Potashner, both of which make reference to the shift change and not grocery shopping as the reason for going to the RPC store that afternoon, and argues that this is more reliable evidence than CP's and her daughter's testimony and the diary excerpts, which surfaced long after the events in question.

[43] Ms. Castellucci also takes the position that even if CP was in the process of grocery shopping when the fall occurred, this would still represent an activity that was incidental to her employment and thereby satisfy the "activity" component of Board policy.

[44] Finally, Ms. Castellucci discussed a number of prior Tribunal decision in support of her position (*Decision Nos. 774/09, 1725/11, 1694/11 and 190/88*).

(x) Mr. McDonnell's submissions

[45] Mr. McDonnell submits that CP's primary purpose for going to the RPC store on March 17 was to do some grocery shopping. She did not have a work shift that day, the RPC store was on her way home from work at her full-time job, and CP's testimony that she chose to shop there because of the price bargains is a credible explanation.

[46] In support of his position, Mr. McDonnell points out that there was no requirement for CP to actually go to the RPC store to change the shift. She could have done this by phone under the policy in place for the deli department, and only chose to do so in person because she was

already at the store for other personal purposes. In other words, CPs primary intent in going to the store was to shop, and the action of changing shifts was at most a secondary purpose.

[47] Mr. McDonnell also takes the position that even if CP had not intended to shop, the activity of changing shifts would not be sufficiently linked to job duties to qualify as an activity incidental to employment.

[48] As far as OPM Document No. 15-02-02 is concerned, Mr. McDonnell submits that CP was not engaged in any work-related activities at the time of the accident. She had completed shift change arrangements and had moved on to personal activities, specifically going to the washroom and doing some grocery shopping. In Mr. McDonnell's view, once the shift change activity ended, the employer was no longer exercising any control over the CP's actions, and she had at that point removed herself from the employment context.

[49] Mr. McDonnell referred to two prior Tribunal decisions in support of his position that the worker was not in the course of her employment at the time of the falling incident (*Decision Nos. 1721/10 and 147/11*).

(xi) Analysis and findings

[50] At different points during the hearing, Mr. McDonnell questioned whether both of the applicant companies in this case are Schedule 1 employers. He did not go so far as to say that one or both of them were not, but rather than the status was not clear.

[51] Ms. Castellucci expressed surprise at this position, having assumed that the issue of the status of the two companies had already been clarified and that she and Mr. McDonnell had agreed prior to the hearing that they were both Schedule 1 employers.

[52] In his section 31 statement, Mr. McDonnell acknowledges that Ontario Corporation Number 2039292 Ontario Limited operating as Rathburn Price Chopper is a Schedule 1 employer under the *Act*. And at the beginning of the hearing, Mr. McDonnell conceded that the other applicant/defendant, Ontario Corporation Number 2074140 was also a Schedule 1 employer. I accept that the various corporate names of the defendants in the civil suit are similar in nature and that the issue might be confusing, but given Mr. McDonnell's concessions on the status of the two applicant companies, I am not persuaded based on the imprecise arguments put forward by him that there is any reason to question either company's status as a Schedule 1 employer at this late stage of the process.

[53] There is no dispute in this case that the accident occurred at CP's "place" of part-time employment with RPC, as defined in OPM Document No. 15-02-02.

[54] The situation is less clear regarding the "time" and "activity" criteria components of the same policy.

[55] As far as "time" is concerned, the accident did not occur during one of CP's scheduled work shifts. However, as stated by the Panel in *Decision No.1725/11*:

...where an accident happens to a worker with fixed working hours outside of those fixed hours and also outside of a reasonable period before starting or finishing work, Board policy [OPM Document #15-02-02] does not require that the claim be denied. It instead requires an examination of the location of the accident and the activity that the worker was involved with in order to determine the work relatedness of the accident.

[56] Although Mr. McDonnell argues to the contrary, I find that the act of going to the RPC store to arrange a shift change is an activity incidental to CP's employment obligations, as set out in OPM Document No. 15-03-08. All of the witnesses who testified at the hearing were consistent in stating that employees had an ability to change shifts with their co-workers. Specific policies for doing so varied among departments, and it would appear based on the evidence provided by CP and LP that the deli department allowed for changes to be made without formal management approval. They also both testified that changes could be made either in person or over the telephone.

[57] The evidence in this case is clear that CP made shift change arrangements with another employee while she was at the RPC store on March 17, 2007, in accordance with policies set out by the employer. This was an activity that was within CP's normal duties and her regular place of employment, and it was to the benefit of both CP and the employer that she did so in order to ensure staff coverage in the deli department. As such, I find that the activity of changing shifts is properly considered to be incidental to the CP's work and employment obligations.

[58] I also find that, absent any issues relating to shopping activities on CP's part, had she simply parked in the lot and went into and out of the RPC store for the purposes of arranging the shift change, the activity of walking to and from her car would fall within the course of her employment. Applying the guidelines for "activity" set out in OPM Document No. 15-02-02, I find that going personally to the RPC store for the purpose of making a shift change was in compliance with the "customs and practices of the particular workplace", and consistent with "the nature of the work environment". So, if going to the store for this purpose was an option available to employees then, in my view, it is reasonable to conclude that walking to and from the employer's parking lot to make these arrangements would necessarily be part of this same employment activity.

[59] The only remaining issue is whether CP had removed herself from work activities after completing the shift change arrangements by the time the accident occurred.

[60] Mr. McDonnell argues that she had, relying on CP's position that her primary intention in going to the RPC store that day was to do some shopping, and that it was this personal activity that she was engaged in at the time of the fall.

[61] There is conflicting evidence regarding CP's intentions prior to arriving to the RPC store on March 17, 2007. She and her daughter both testified that the purpose was to shop, and that the shift change was simply something that could conveniently be done at the same time. On the other hand, the transcript from CP's examination for discovery makes no mention of any intended shopping activity, either on arrival or after the fall. In addition, the January 31, 2008 report from treating rheumatologist, Dr. Potashner, based on information provided by CP states:

The slip and fall injury took place on the 17th of March of the year 2007. She had gone into the Price Chopper, where she worked part time at the deli counter on Rathburn Avenue. She went in to change her schedule. She then went to the washroom and exited the washroom through a double door and slipped on some milk on the floor.

[62] There is also no documentary evidence, such as a receipt, to substantiate any shopping at the RPC store that day. And I have some difficulty in reconciling the apparent severity of the injuries, which caused CP to cry when she returned to the car and seek medical treatment shortly

after the fall, with a decision to stop on the way out of the store, soaked in milk, to buy a single pineapple.

[63] I also have concerns regarding the two-page handwritten diary provided by CP at the hearing. In my view, a diary of this nature, which was prepared for the specific purpose of documenting events associated with the accident, is not something that would be easily forgotten, and I am puzzled that it would not have been produced at an earlier stage of either this Tribunal proceeding or the examination for discovery in the civil law suit.

[64] On the evidence, it would appear that either the sole, or at the very least, the primary purpose of CP going to her place of employment on March 17, 2007 was to arrange for a shift change for a scheduled shift two days hence. Any intention to shop, at best, would be a secondary purpose, and I am not persuaded on the evidence that any such secondary purpose was present as claimed.

[65] I also find that CP did not complete the work-related activity of changing her shift when she left the deli department and proceeded to the washroom. Using a washroom is an activity incidental to employment, and I find that the chain of employment activities was not broken by CP in doing so. While I accept that the washroom may have been available on occasion for some level of customer use, being located in the “back room” in a part of the store that was not generally accessible to the public, it is reasonable to conclude that CP had a higher degree of unquestioned access to the facilities based on her status as an employee, and was engaged in employment-related activities when using the washroom at that time.

[66] While I am not convinced that CP intended to do some shopping after leaving the “back room” area before returning to her car, I find that this is not determinative as to whether she continued to be in the course of employment at the time of the fall. As outlined earlier, the activity of returning to her parked car after completing the shift change was a work-related activity undertaken by CP in the course of her employment. On the evidence, it would appear that the fall took place immediately after entering the public area of the store and before any shopping activity, even if it did happen, actually occurred.

[67] Finally, I find that the two prior Tribunal decisions referenced by Mr. McConnell in support of CP’s position are distinguishable on their facts.

[68] *Decision No. 1721/10*, involved a situation where a worker slipped and fell on the steps of her place of work approximately 1 1/2 hours before her work shift began. The Panel found that this was outside a reasonable period of time before the worker’s fixed hours of work, and that by arriving so early the employer did not have a chance to clear ice from the steps, thereby significantly lessening its ability to manage its premises to avoid the type of injury sustained by the worker. CP, on the other hand, attended the workplace during normal business hours and engaged in work-related activities reasonably related to her employment. There were also no issues of control on the employer’s part. CP was at the employer’s premises performing an activity that was of benefit to the employer. Similar to the situation in *Decision No. 1725/11*, I find that even though the employer was not directly supervising CP at the time of the accident, “they still retained considerable control and influence over the circumstances that gave rise to the accident”, specifically the option for employees to attend at the workplace to make shift change arrangements.

[69] The other decision, *Decision No. 147/11*, involved a motor vehicle accident and the issue of whether one of the drivers was in the course of his employment when the accident occurred. The Panel found that he was not, based on evidence that he was not engaged in an activity which was part of his work duties or an activity which was required or controlled by the employer. That is not the situation here. I have determined that CP was engaged in a work-related activity when she went to her regular place of employment, the RPC store, on March 17, 2007 to arrange for a shift change, an activity that was required by her employer.

[70] For all of these reasons, I find that CP was in the course of her employment at the time of the accident on March 17, 2007. The accident occurred at her regular place of employment while performing a work-related activity or an activity reasonable incidental to her employment. As such, the requirements of OPM Document No. 15-02-02 and No. 15-03-08 have been established on the evidence.

[71] Because CP was a worker in the course of her employment at the time of the accident, she is barred by section 31(1) of the *Act* from commencing an action for damages in the Ontario Superior Court of Justice.

DISPOSITION

[72] The application is allowed.

[73] The plaintiffs in Ontario Superior Court of Justice Court File No. CV-09-373872, are barred from commencing and maintaining a civil action against the defendants Ontario Corporation Number 2039292 Ontario Limited operating as Rathburn Price Chopper, and Ontario Corporation Number 2074140, for damages stemming from injuries sustained at the premises of these two defendants on March 17, 2007.

DATED: June 28, 2012

SIGNED: T. Mitchinson